

Court No. - 1

Case :- WRIT - C No. - 24961 of 2019

Petitioner :- Summer Singh

Respondent :- Dakshinanchal Vidyut Vitra Nigam Ltd. And 3 Others

Counsel for Petitioner :- Arvind Kumar Tiwari

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Arvind Kumar Tiwari, learned counsel for the petitioner and Sri Dinesh Kumar Singh, learned counsel appearing for respondents no. 2 and 3.

By means of the present writ petition the petitioner has challenged the order dated 25.6.2018 passed by the Executive Engineer whereby he has declined to energize the electricity connection already granted to the petitioner.

The plea taken in the order impugned is that there is a suit for partition going on between the parties under Section 176 of the U.P. Zamindari Abolition and Land Reforms Act, 1952.

Having considered the arguments advanced by the learned counsel for the petitioner and having gone through the order impugned and the plea raised in the writ petition, we are of the opinion that the electricity connection can be given to any person who may also be tenant but not to a trespassers. The U.P. Electricity Supply Code, 2005 takes full care of such circumstance where indemnity bond can be asked and connection can be given following due procedure.

Here in this case we find that the petitioner is a co-tenure holder and there is a partition suit pending and, therefore, in the considered opinion of the Court if the Electricity Department wants to take extra care, it can ask the petitioner to submit indemnity bond as provided for under Annexure 4.2 of the U.P. Electricity Supply Code, 2005.

Learned counsel for the respondent submits that in case if the petitioner submits such a bond, his case should be considered positively.

In view of the above, the writ petition is disposed of with a direction that in case if the petitioner submits indemnity bond within a period of 2 weeks from today, his claim shall be considered and a positive direction shall be issued in this regard.

Appropriate decision shall be taken by the authority within a further period of four weeks from the date of production of a certified copy of the order.

With the aforesaid observations and directions the writ petition stands disposed of.

Order Date :- 5.8.2019

Nadeem Ahmad

[Ajit Kumar,J.] [Ramesh Sinha,J.]